

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1865

By: Roberts

AS INTRODUCED

An Act relating to elections; amending Section 1, Chapter 291, O.S.L. 2022 (26 O.S. Supp. 2024, Section 6-104.1), which relates to paper ballots; directing for ballots to be printed in advance of election; permitting certain additional ballots be printed; clarifying does not apply to printing or marking of ballots for certain persons; amending 26 O.S. 2021, Section 7-104, which relates to hours for voting; clarifying applicability to county election board; directing that voter appear at assigned polling place; prohibiting voting centers; clarifying voting centers; providing exception; clarifying subprecincts are not prohibited; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 291, O.S.L. 2022 (26 O.S. Supp. 2024, Section 6-104.1), is amended to read as follows:

Section 6-104.1. A. All ballots used for any election shall be printed on paper to ensure a fair and accurate count; provided, each precinct polling place and in-person absentee voting location shall provide a means for any voter who requires assistance by reason of blindness, disability, or inability to read or write to cast a

1 ballot privately and independently, in a manner to be determined by
2 the Secretary of the State Election Board.

3 B. 1. Ballots for each election day precinct shall be printed
4 in advance of the date of the election. Provided, the Secretary of
5 the State Election Board may authorize the printing of additional
6 ballots on election day in the event of a ballot shortage or due to
7 an emergency or unforeseen circumstance as described in Section 22-
8 101 of this title.

9 2. Nothing in this subsection shall prohibit the printing or
10 marking of ballots for persons with blindness, disability, or
11 inability to read or write as provided in subsection A of this
12 section.

13 SECTION 2. AMENDATORY 26 O.S. 2021, Section 7-104, is
14 amended to read as follows:

15 Section 7-104. A. At every Primary, Runoff Primary and General
16 Election and any other election conducted by a county election
17 board, each polling place in the state shall open at 7:00 a.m. and
18 shall remain open continuously until 7:00 p.m., and every registered
19 voter of a precinct who presents himself between said hours shall be
20 entitled to vote, as provided by law, provided further, all
21 qualified voters who are in line waiting to vote at 7:00 p.m. shall
22 be allowed to vote.

23 B. 1. A registered voter wishing to vote on election day shall
24 appear at the polling place for his or her assigned precinct.

1 2. Neither the State Election Board nor any county election
2 board shall utilize vote centers for voting on election day. For
3 the purposes of this section, "vote center" means a place where any
4 voter in the entire jurisdiction can vote on election day,
5 regardless of the voter's precinct assignment. Provided, an
6 exception to this requirement may be authorized for a county
7 election board by the Secretary of the State Election Board in the
8 event of an emergency as described in Section 22-101 of this title.
9 The emergency use of a countywide vote center must be limited to the
10 precincts directly impacted by the emergency.

11 3. Nothing in this subsection shall prohibit the use of
12 subprecincts as described in Section 3-119 of this title, nor shall
13 it prohibit the assignment of precinct officials to serve more than
14 one precinct, if authorized by law, if the precincts share the same
15 election day polling place.

16 C. If any provision of federal law specifies hours for voting
17 in federal elections, the Secretary of the State Election Board
18 shall direct the county election boards to allow voting in all
19 elections held on the same day as such federal elections during the
20 hours specified by federal law.

21 SECTION 3. This act shall become effective July 1, 2025.

22 SECTION 4. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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